

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carter Garfield	Team: Squad #16	CCRB Case #: 202302703	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 03/21/2023 12:51 AM	Location of Incident: 103rd Street- Corona Plaza subway station	18 Mo. SOL 9/21/2024	Precinct: 115		
Date/Time CV Reported Tue, 03/21/2023 3:20 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 03/31/2023 1:10 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO John Ogunmoyin	15089	937211	TD 20
2. PO Steven Badlu	09933	918722	TD 20
3. PO Jose Taveras	29587	965558	TD 20
4. PO Roger Pineda	02805	967650	TD 20
5. PO Tristan Etienne	25881	971924	115 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Michael Anderson	00029	892728	TD 20
2. CPT Thomas Maloney	00000	901894	TD 34
3. PO Tribhuwan Lekhak	27357	968570	TD 20
4. PO Hassan Shuaib	14557	967689	TD 20
5. PO Stephen Casazza	31239	970443	110 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO John Ogunmoyin	Force: Police Officer John Ogunmoyin used physical force against § 87(2)(b)	A . Unable to Determine
B . PO John Ogunmoyin	Force: Police Officer John Ogunmoyin used physical force against § 87(2)(b)	B . Substantiated
C . PO John Ogunmoyin	Force: Police Officer John Ogunmoyin used physical force against § 87(2)(b)	C . Substantiated
D . PO John Ogunmoyin	Discourtesy: Police Officer John Ogunmoyin spoke discourteously to § 87(2)(b)	D . Substantiated
E . PO John Ogunmoyin	Discourtesy: Police Officer John Ogunmoyin spoke discourteously to § 87(2)(b)	E . Substantiated
F . PO John Ogunmoyin	Abuse: Police Officer John Ogunmoyin threatened § 87(2)(b) with the use of force.	F . Substantiated
G . PO John Ogunmoyin	Force: Police Officer John Ogunmoyin used physical force against § 87(2)(b)	G . Substantiated
H . PO John Ogunmoyin	Force: Police Officer John Ogunmoyin used physical force against § 87(2)(b)	H . Substantiated
I . PO Steven Badlu	Force: Police Officer Steven Badlu failed to intervene in the use of excessive force against § 87(2)(b)	I . Miscellaneous - Subject Retired

Officer(s)	Allegation	Investigator Recommendation
J . PO Steven Badlu	Force: Police Officer Steven Badlu failed to intervene in the use of excessive force against § 87(2)(b)	J . Miscellaneous - Subject Retired
K . PO John Ogunmoyin	Discourtesy: Police Officer John Ogunmoyin spoke discourteously to § 87(2)(b)	K . Within NYPD Guidelines
L . PO Roger Pineda	Discourtesy: Police Officer Roger Pineda spoke discourteously to § 87(2)(b)	L . Substantiated
M . PO Roger Pineda	Force: Police Officer Roger Pineda used physical force against § 87(2)(b)	M . Within NYPD Guidelines
N . PO John Ogunmoyin	Force: Police Officer John Ogunmoyin used physical force against § 87(2)(b)	N . Within NYPD Guidelines
O . PO John Ogunmoyin	Discourtesy: Police Officer John Ogunmoyin spoke discourteously to § 87(2)(b)	O . Substantiated
P . PO Tristan Etienne	Discourtesy: Police Officer Tristan Etienne spoke discourteously to § 87(2)(b)	P . Substantiated
Q . PO Jose Taveras	Force: Police Officer Jose Taveras used physical force against § 87(2)(b)	Q . Substantiated
R . PO Roger Pineda	Force: Police Officer Roger Pineda used physical force against § 87(2)(b)	R . Substantiated
S . PO John Ogunmoyin	Abuse: Police Officer John Ogunmoyin improperly used his body-worn camera.	S . Substantiated
T . PO Steven Badlu	Abuse: Police Officer Steven Badlu improperly used his body-worn camera.	T . Miscellaneous - Subject Retired

Case Summary

On March 21, 2023, Sgt. Michael Anderson of Transit District 20 called IAB and reported the following complaint on behalf of § 87(2)(b) and § 87(2)(b) as they were injured while in police custody. On March 31, 2023, IAB referred this complaint to the CCRB, generating IAB log number § 87(2)(b).

On March 21, 2023, at 12:51 a.m., inside the 103rd Street-Corona Plaza station in Queens, PO John Ogunmoyin and PO Steven Balu, both of TD 20, approached § 87(2)(b) and § 87(2)(b) for allegedly evading paying the fare. PO Ogunmoyin had a physical interaction with § 87(2)(b) near the turnstile (**Allegation A: Force, unable to determine**). PO Ogunmoyin then pushed both § 87(2)(b) and § 87(2)(b) (**Allegations B, C: Force, substantiated**).

PO Ogunmoyin made numerous discourteous statements to both § 87(2)(b) and § 87(2)(b) including, “Get on the fucking train,” “Keep fucking with me,” “Eat shit,” “I don’t give a fuck,” and, “We’re not paying you shit” (**Allegations D, E: Discourtesy, substantiated**). PO Ogunmoyin threatened § 87(2)(b) with the use of force (**Allegation F: Abuse of Authority, substantiated**).

PO Ogunmoyin engaged in a physical altercation with both individuals in which he punched § 87(2)(b) in the face and chest area fourteen times, kneed him in the stomach area, and threw him to the ground (**Allegation G: Force, substantiated**). PO Ogunmoyin punched § 87(2)(b) in the face four times and also threw him to the ground (**Allegation H: Force, substantiated**). PO Badlu failed to intervene in PO Ogunmoyin’s use of excessive force (**Allegations I, J: Force, miscellaneous – subject resigned**).

Additional officers responded to the scene, including PO Rodger Pineda, PO Jose Taveras, and PO Tristian Etienne, all of TD 20. At one point, PO Ogunmoyin said to § 87(2)(b) “Get the fuck off me” (**Allegation K: Discourtesy, within NYPD guidelines**). PO Pineda said, “Fuck that,” as well as, “Give me your fuck – give me your fucking – don’t fucking resist,” to § 87(2)(b) (**Allegation L: Discourtesy, substantiated**).

PO Pineda struck § 87(2)(b) in the back with a closed fist, twice (**Allegation M: Force, within NYPD guidelines**). PO Ogunmoyin struck § 87(2)(b) in the back and told him to “Shut the fuck up” (**Allegation N: Force, within NYPD guidelines**) (**Allegation O: Discourtesy, substantiated**). PO Etienne said to § 87(2)(b) “Stop fucking moving,” and, “Cut out the bullshit” (**Allegation P: Discourtesy, substantiated**).

PO Taveras and PO Pineda, while walking § 87(2)(b) to an ambulance, pulled § 87(2)(b) arms, which were rear-cuffed, upward and above his head (**Allegations Q, R: Force, substantiated**). PO Ogunmoyin and PO Badlu both failed to properly activate their BWCs during this incident (**Allegation S: Abuse of Authority, substantiated**) (**Allegation T: Abuse of Authority, miscellaneous – subject resigned**).

§ 87(2)(b) and § 87(2)(b) were both arrested for resisting arrest, obstruction of governmental administration, criminal trespass, disorderly conduct, violation of a local law, and harassment in the second degree (**BR 01**).

The investigation is in possession of two MTA surveillance camera videos (**BRs 01, 02**) and 37 BWC videos that capture this incident (**BRs 03 – 10**). The investigation is in possession of no additional video.

On July 14, 2023, this case was reassigned from Investigator Marie Seguy to Supervising Investigator Carter Garfield.

Findings and Recommendations

Allegation (A) Force: Police Officer John Ogunmoyin used physical force against § 87(2)(b)

Allegation (B) Force: Police Officer John Ogunmoyin used physical force against § 87(2)(b)

Allegation (C) Force: Police Officer John Ogunmoyin used physical force against § 87(2)(b)

Allegation (D) Discourtesy: Police Officer John Ogunmoyin spoke discourteously to § 87(2)(b)

Allegation (E) Discourtesy: Police Officer John Ogunmoyin spoke discourteously to § 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer John Ogunmoyin threatened § 87(2)(b) with the use of force.

It is undisputed that § 87(2)(b) and PO Ogunmoyin engaged in a verbal altercation during this incident in which they both alleged the other made a joke about their mother.

§ 87(2)(b) (BR 11) stated that he and his cousin, § 87(2)(b) had entered the train station after drinking approximately two beers each with friends. Before they paid and entered through the turnstile, PO Ogunmoyin approached them and accused them of attempting to evade the fare. § 87(2)(b) denied this and began arguing with PO Ogunmoyin. PO Ogunmoyin said something about § 87(2)(b) mother, so § 87(2)(b) called PO Ogunmoyin, “the N-word.” § 87(2)(b) and § 87(2)(b) eventually paid and entered through the turnstile, but § 87(2)(b) continued arguing with PO Ogunmoyin. PO Ogunmoyin then followed them inside. He did not mention any physical force or any threats of force that occurred during this initial interaction.

The investigation was unable to obtain a statement from § 87(2)(b)

PO Ogunmoyin (BR 12) testified that he observed § 87(2)(b) and § 87(2)(b) attempting to enter through the turnstile together and only pay for one rider. He could not recall what he said exactly, but he said something to them, to which they laughed and both paid the fare. PO Ogunmoyin could not recall how the situation escalated but believed that the two individuals were intoxicated and upset that they had gotten caught trying to evade the fare. He believed this because § 87(2)(b) began saying various discourteous things to him, including, “nigga,” “Africa,” and jokes about his mother. PO Ogunmoyin testified that he also made profane comments to § 87(2)(b) (none of which he could recall specifically), and described the incident as a “heated exchange.” He testified that he smelled alcohol, specifically beer, from both individuals and, along with the fact that they were slurring their words and stumbling around, believed them both to be intoxicated. He described them both as combative and belligerent. § 87(2)(b) and § 87(2)(b) both exited the paid area of the station and continued arguing with PO Ogunmoyin. PO Ogunmoyin recalled telling both individuals to either get on the train or leave the station multiple times, which they ignored.

At one point, PO Ogunmoyin’s BWC fell off his uniform and § 87(2)(b) picked it up. PO Ogunmoyin “snatched” it back from § 87(2)(b) which resulted in § 87(2)(b) assuming a “fighting stance,” as if he were to start boxing. PO Ogunmoyin testified that he

mimicked § 87(2)(b) fighting stance to “maybe get him on the train.” There was no other reason he did this. He initially did not recall any additional physical contact with § 87(2)(b) or § 87(2)(b) (prior to the punching), but after being presented with MTA footage (BR 02), he amended his statement. He recalled § 87(2)(b) attempting to grab something from his hand at one point, to which he pushed § 87(2)(b) away to prevent him from taking whatever it was he was holding. PO Ogunmoyin had no explanation as to why he pushed § 87(2)(b) and § 87(2)(b) at the 11:34 mark of the surveillance footage and guessed that he was attempting to get them on the train.

PO Ogunmoyin testified that he made the decision to eject the two individuals from the train station once they came back out of the paid section of the station and refused to reenter and take the train. He added that he did not make the decision to place them under arrest until § 87(2)(b) slapped his hand (to be discussed below).

PO Badlu (BR 13) provided testimony consistent with PO Ogunmoyin’s. Regarding the force captured on MTA footage at 6:47 and 11:37, PO Badlu testified that he did not know what was going on at that point in time and could only recall what he saw on his own BWC.

MTA footage (which does not include audio), capturing the turnstiles left of the MTA booth (BR 02), is the only video that captures the beginning of this incident. At 5:37 (timestamped 12:50 a.m. on the top left corner), § 87(2)(b) and § 87(2)(b) are first captured on screen. They both walk up to the turnstile and stand within a foot of each other. § 87(2)(b) turns and looks behind him (in the direction of where the officers are standing off-screen) and places both hands on the sides of the turnstile. At 6:02, § 87(2)(b) attempts to pay the fare (unsuccessfully) and turns to face PO Badlu, who walks over from the left side. At 6:15, § 87(2)(b) pays the fare (successfully) for § 87(2)(b) who enters. § 87(2)(b) pays for himself and enters immediately after.

As § 87(2)(b) enters, at 6:24, he turns around and says something in the direction of the officers. At 6:30, PO Ogunmoyin and PO Badlu walk over to the turnstiles. § 87(2)(b) and PO Ogunmoyin appear to be speaking to each other, due to the fact that they are gesturing at and facing each other.

At 6:47, § 87(2)(b) appears to reach for PO Ogunmoyin’s utility belt on his left side. PO Ogunmoyin grabs § 87(2)(b) in response. It is unclear from the camera angle what he is doing to § 87(2)(b) but they make physical contact for approximately four seconds.

At 7:00, PO Badlu says something and points to the stairs leading to the train and then points to the exit. All four appear to continue speaking to each other for the next few minutes. At 8:00, § 87(2)(b) who is still standing on the paid side, reaches over and pays for another fare. At 9:00, PO Badlu and § 87(2)(b) are both smiling and appear to be laughing. At 9:30, § 87(2)(b) steps toward PO Ogunmoyin and PO Badlu and starts air-punching in the direction of the surveillance camera. At 11:20, § 87(2)(b) and § 87(2)(b) are standing on the unpaid side of the turnstiles and appear to still be speaking to PO Ogunmoyin and PO Badlu, who walked off camera to the left. At 11:34, PO Ogunmoyin and PO Badlu returns to them.

At 11:40, PO Ogunmoyin grabs § 87(2)(b) by the jacket (near right shoulder) and appears to strike him with his right hand in a closed fist. It is unclear from the video where PO Ogunmoyin strikes § 87(2)(b). At 11:47, PO Ogunmoyin pushes both § 87(2)(b) and § 87(2)(b) away, causing § 87(2)(b) to take two steps backward. § 87(2)(b) is up against the turnstile at the time of the push and does not move. At 11:52, PO Ogunmoyin physically interacts with § 87(2)(b) in a manner that is not captured on video. It appears that § 87(2)(b)

reaches towards the back of PO Ogunmoyin's right thigh area.

At 12:07, § 87(2)(b) attempts to pick up PO Ogunmoyin's BWC, which appears to fall to the ground, but PO Ogunmoyin grabs it from his hand. At 12:15, § 87(2)(b) advances toward PO Ogunmoyin in a lunging motion, stepping forward approximately one pace. PO Badlu and § 87(2)(b) both hold § 87(2)(b) with one arm outstretched and prevent him from advancing. At 12:20, § 87(2)(b) takes off his backpack and holds up his hands in fists, which PO Ogunmoyin mimics, putting them in a sort of boxing stance about five feet from each other for approximately seven seconds. At 12:24, PO Ogunmoyin pulls his right arm back in a manner that appears to be an attempt to swing towards § 87(2)(b).

PO Ogunmoyin's BWC (BR 05) captures a number of discourtesies. At 1:00 (timestamped 12:56 a.m.), PO Ogunmoyin pushes § 87(2)(b) and § 87(2)(b) (corresponds with the above MTA footage at 11:40). While pushing them, PO Ogunmoyin says, "Either y'all leave or you're gonna get on the train. You're not going to be talking shit.... You're either gonna leave or get on the fucking train." At 1:10, his BWC falls to the ground. PO Ogunmoyin says, "Leave, or get on the train," several times. § 87(2)(b) is heard saying, "Call 911." At 1:32, § 87(2)(b) takes his backpack off while PO Ogunmoyin says, "What are you doing?" Four times. § 87(2)(b) yells, "Come," three times and beckons to PO Ogunmoyin with his hand. At 1:37, § 87(2)(b) and PO Ogunmoyin engage in a boxing stance (as discussed above). § 87(2)(b) is whooping and PO Ogunmoyin is saying, "What up?" At 1:54, PO Ogunmoyin says, "Keep playing. Keep playing. Keep playing. Keep fucking with me." At 2:55, PO Ogunmoyin says, "Yeah, eat shit. Eat shit." At 3:13, PO Ogunmoyin says to § 87(2)(b) "I don't give a fuck where you're from," three times. At 4:24, § 87(2)(b) says, "Pay me the fucking fare." PO Ogunmoyin says, "No, we're not paying you shit. That's on you."

After reviewing BWC clips capturing his discourteous statements, PO Ogunmoyin (BR 12) testified that he said, "Get on the fucking train," to get the two individuals to listen to him. He had no explanation as to why he said, "Keep fucking with me," "Eat shit," or, "We're not paying you shit." He explained that he said, "I don't give a fuck where you're from," because § 87(2)(b) kept calling him African.

Patrol Guide Procedure 221-01 (BR 20) states that, before force is to be used, officers are to use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. Only in situations in which this is not appropriate should an officer use of force to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In determining whether the use of force is reasonable, officers should consider the nature and severity of the crime and circumstances, the actions taken by the subject, the duration of the action, the immediacy of the perceived threat or harm to the subject, members of service, and bystanders, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, the number of subjects compared to the number of officers, size, age and condition of the subject compared to the officers, the subject's violent history (if known), the presence of a hostile crowd or agitators, and whether the subject is apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

§ 87(2)(g)

§ 87(2)(b) while the video does show § 87(2)(b) appearing to reach toward PO Ogunmoyin, PO Ogunmoyin is seen grabbing and pulling § 87(2)(b) forward, in a manner that indicates he did more than try to push § 87(2)(b) away. The exchange,

however, is not entirely clear as PO Ogunmoyin is positioned between the camera and § 87(2)(b)

§ 87(2)(b) and neither PO Ogunmoyin nor PO Badlu had activated their BWC yet, so there is no additional video evidence.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unable to determine**.

PO Ogunmoyin “guessed” that he pushed § 87(2)(b) and § 87(2)(b) (as seen on MTA footage [BR 02] at 11:40) to “get them on the train,” as they were refusing to board the train or leave the station. § 87(2)(g)

It is therefore recommended that **Allegations B and C** be **substantiated**.

Patrol Guide Procedure 200-02 (BR 21) states that officers are committed to treating every citizen with compassion, courtesy, professionalism, and respect. Officers are expected to maintain a higher standard of integrity than is generally expected of others.

In DCT Case No. 2021-23487 (BR 32), the court found the use of the word “shit,” to be a generic term that is not discourteous when used in the context of referring to criminal activity.

§ 87(2)(g)

It is therefore recommended that **Allegation E** be **substantiated**.

§ 87(2)(g)

It is recommended that **Allegation F** be **substantiated**.

Allegation (G) Force: Police Officer John Ogunmoyin used physical force against § 87(2)(b)

Allegation (H) Force: Police Officer John Ogunmoyin used physical force against § 87(2)(b)

Allegation (I) Abuse of Authority: Police Officer Steven Badlu abused authority in relation to

§ 87(2)(b)

Allegation (J) Abuse of Authority: Police Officer Steven Badlu abused authority in relation to

§ 87(2)(b)

It is undisputed that PO Ogunmoyin punched § 87(2)(b) and § 87(2)(b) multiple times during this incident.

§ 87(2)(b) (BR 11), who stated that he is a 5-foot tall, 110-pound male, did not provide an explanation as to why the fighting occurred. He recalled PO Ogunmoyin punching him in the nose and throwing him onto the ground. He did not see what happened to § 87(2)(b). After the incident, he was taken to the hospital § 87(2)(a) – PHL 18(6). He received stitches on his ear and was treated for a broken nose. § 87(2)(b) was uncooperative in signing HIPAA forms and the investigation, therefore, was unable to obtain his medical records pertaining to this incident.

The investigation was unable to obtain a statement from § 87(2)(b).

PO Ogunmoyin (BR 12), who stated that he is a 6'4" tall, 238-pound male, said that he was going to eject § 87(2)(b) and § 87(2)(b) from the station because they were yelling profanities at him and refusing to get on the train, but later made the decision that both were going to be arrested for public intoxication and disorderly conduct. PO Ogunmoyin attempted to swipe his MetroCard to enter through the turnstiles to the paid area, to prevent the two from entering and boarding the train. § 87(2)(b) "smacked" his hand away from the turnstile and knocked his MetroCard out of his hands. By this point, PO Ogunmoyin decided that § 87(2)(b) was going to be arrested for assault.

PO Ogunmoyin did not say anything to either § 87(2)(b) or § 87(2)(b) prior to what he described as the ensuing "altercation." He also said that he made no observations of either individual that indicated to him that they were carrying some sort of weapon. PO Ogunmoyin testified that he punched § 87(2)(b) "a few times," in the face after § 87(2)(b) smacked his hand. He said he chose to punch § 87(2)(b) as opposed to some other form of force because he believed that § 87(2)(b) would not adhere to any sort of verbal command. He added that § 87(2)(b) was "throwing punches" at him, but he moved out of the way, so none of the punches were successful.

PO Ogunmoyin testified that he then pulled § 87(2)(b) away from the turnstiles to separate § 87(2)(b) and § 87(2)(b) and that § 87(2)(b) fell to the ground in the process. He initially did not recall ever kneeling § 87(2)(b) but a review of PO Badlu's BWC (specifically at 5:02) refreshed his memory. PO Ogunmoyin testified that he knelt § 87(2)(b) to protect himself as § 87(2)(b) was trying to hit him, that they were fighting, that he did not know if § 87(2)(b) had any weapons on him, that he needed to protect himself, that he was a police officer, and that the BWC clip presented does not show that § 87(2)(b) was also hitting him. There were no other reasons as to why he knelt § 87(2)(b).

PO Ogunmoyin testified that at this point, when § 87(2)(b) was on the ground, he was going to handcuff him when he noticed § 87(2)(b) "approaching" him as well, so he hit § 87(2)(b). During his interview, PO Ogunmoyin reviewed PO Badlu's BWC from 5:04 to 5:11, capturing this portion of the incident. PO Ogunmoyin testified that he punched § 87(2)(b) in the face because he feared for his safety and because § 87(2)(b) was resisting arrest. PO Ogunmoyin did not remember if § 87(2)(b) ever hit him.

PO Badlu's BWC from 5:11 to 5:25 was played during PO Ogunmoyin's interview, showing PO Ogunmoyin punching both § 87(2)(b) and § 87(2)(b) back and forth. PO Ogunmoyin testified that he punched them at this point because he feared for his safety. PO Ogunmoyin testified that both individuals were trying to attack him at this point. He added that § 87(2)(b) was "squaring up" by walking up to him with closed fists as if he was going to hit him. PO Ogunmoyin testified that § 87(2)(b) did not get a chance to hit him because he was intoxicated and moving "in slow motion." When asked why he continued punching § 87(2)(b) PO Ogunmoyin testified that he was making sure that they were subdued.

PO Ogunmoyin testified that § 87(2)(b) held onto his right leg. PO Ogunmoyin did not

know what § 87(2)(b) was doing so he punched him several times to get him off his leg. PO Ogunmoyin testified that he did not know if § 87(2)(b) was going to bite him or grab his gun. PO Ogunmoyin then said that § 87(2)(b) never bit his leg or reached for his gun. PO Ogunmoyin did not say anything to § 87(2)(b) until after PO Badlu pulled § 87(2)(b) away from them, at which point he told § 87(2)(b) to get off his leg. PO Ogunmoyin testified that he did not tell § 87(2)(b) to get off his leg prior to punching him because he “didn’t really understand that he was there.” He then said he did not know why. Other than holding onto PO Ogunmoyin’s leg, § 87(2)(b) did not do anything else. PO Ogunmoyin then testified that § 87(2)(b) was a threat to his safety and eventually took PO Ogunmoyin to the ground due to holding onto his leg. From there, he was able to place § 87(2)(b) in handcuffs.

When asked what he was hoping to accomplish with the force he was using against these two individuals, PO Ogunmoyin testified that he was hoping to arrest them, but it was difficult because they were resisting arrest. PO Ogunmoyin had difficulty communicating with PO Badlu what his intentions were because of the speed of the altercation. When asked if § 87(2)(b) and § 87(2)(b) presented a safety concern due to their combined strength, PO Ogunmoyin testified that he did not have difficulty placing them in handcuffs because he was stronger than them and they were both clearly intoxicated. He added that he feared for his safety during this incident because § 87(2)(b) “wanted to fight him” for the entire incident.

PO Badlu (**BR 13**) provided testimony consistent with PO Ogunmoyin’s with the following exceptions. He initially stated that § 87(2)(b) tried to “hit” PO Ogunmoyin, which initiated the altercation, but after reviewing his BWC, he amended his statement and testified that he never saw § 87(2)(b) hit PO Ogunmoyin during this incident. He recalled holding onto § 87(2)(b) and § 87(2)(b) breaking away from him at one point. He also recalled PO Ogunmoyin “going back and forth” between punching § 87(2)(b) and § 87(2)(b). During that time, PO Badlu testified that he was attempting to pull § 87(2)(b) away from PO Ogunmoyin, but § 87(2)(b) was resisting by holding onto a gate next to the turnstiles. He observed PO Ogunmoyin strike both individuals in the face at least once during this time. He could not recall if he made any verbal commands or attempted anything else to try and move § 87(2)(b) away. He eventually pulled § 87(2)(b) away and down onto the ground. PO Badlu then ordered § 87(2)(b) to stay down but § 87(2)(b) “disobeyed” his orders. He was unable to explain how § 87(2)(b) disobeyed him. After reviewing MTA footage (specifically **BR 03** at 15:59), PO Badlu explained that he pushed § 87(2)(b) because § 87(2)(b) was approaching PO Ogunmoyin, who was engaging with § 87(2)(b) with a closed fist and he was concerned § 87(2)(b) was going to intervene.

The entirety of this physical interaction is not comprehensively captured on one video. MTA footage (**BRs 02, 03**) best capture the interaction from a third-party perspective, but PO Badlu’s BWC (**BR 04**) provides audio of the interaction.

In PO Badlu’s BWC (**BR 04**), at 4:45, § 87(2)(b) and PO Ogunmoyin are standing at the turnstiles on the unpaid side. PO Badlu is about ten feet away. § 87(2)(b) says, “Let’s go, let’s go.” PO Ogunmoyin points to the exit and replies, “You’re not going. You’re not going. Exit the station. You’re not getting on the train.” § 87(2)(b) and § 87(2)(b) are saying, “Oh yeah? Oh yeah?”

In the first MTA video (**BR 02**), at 15:36, after PO Ogunmoyin points to the exit, he appears to pull a MetroCard out of his pocket and attempts to swipe it to pay to enter through the turnstiles. § 87(2)(b) appears to smack PO Ogunmoyin’s hand and knock the MetroCard to the ground. At 15:40, PO Ogunmoyin punches § 87(2)(b) in the face with his right hand, then grabs § 87(2)(b) by his

shoulders with both hands. § 87(2)(b) appears to grab onto § 87(2)(b) shoulders from behind at the same time, and so PO Ogunmoyin, by pulling § 87(2)(b) pulls them both away from the turnstiles about three feet. At 15:43, PO Ogunmoyin then punches § 87(2)(b) in the face with his right hand. § 87(2)(b) and PO Ogunmoyin appear to be holding onto each other's left shoulder with their left hands. At 15:45, PO Ogunmoyin punches § 87(2)(b) in the face a second and third time with his right hand. PO Badlu holds onto § 87(2)(b) by his backpack. At 15:48, PO Ogunmoyin appears to knee § 87(2)(b) in the stomach with his left leg. He then pulls § 87(2)(b) by the top of his jacket with both hands to the left and then off screen.

The next portion of the incident is best captured on PO Badlu's BWC (BR 04). At 5:00, PO Badlu is holding onto § 87(2)(b) and telling him to get down. PO Ogunmoyin knees § 87(2)(b) as discussed above, then pulls him by his jacket about ten feet forward, where § 87(2)(b) falls to the ground face-first. § 87(2)(b) appears to grab onto PO Ogunmoyin's legs as he falls to the ground. At 5:02, § 87(2)(b) holding onto PO Ogunmoyin's right leg, lands on his left side and rolls onto his back. At 5:03, PO Ogunmoyin punches § 87(2)(b) a fourth and fifth time, in what appears to be his chest or head area, but it is unclear from the video. PO Badlu radios for additional units to the scene as this occurs. At 5:06, § 87(2)(b) breaks free from PO Badlu and PO Ogunmoyin turns to face him at the same time. § 87(2)(b) takes about one step toward PO Ogunmoyin but has his hands up near his face with his palms facing PO Ogunmoyin.

The first MTA video (BR 02) captures the next portion of the incident best. At 15:53, § 87(2)(b) breaks free of PO Badlu and steps toward PO Ogunmoyin, as discussed above. PO Badlu approaches from behind and grabs § 87(2)(b) shoulders with both hands. At the same time, § 87(2)(b) raises both hands up to his face, palms facing PO Ogunmoyin, as PO Ogunmoyin punches § 87(2)(b) in the face. PO Ogunmoyin then grabs § 87(2)(b) by the shoulders and pull him down to the ground.

At 15:56, while PO Ogunmoyin brings § 87(2)(b) to the ground, § 87(2)(b) appears on screen approaching them with his left hand open and his right hand in a fist on his side. He gets approximately three feet from PO Ogunmoyin. PO Badlu appears to push him with both hands on his left shoulder, away from PO Ogunmoyin and § 87(2)(b) who is on the ground. PO Ogunmoyin grabs § 87(2)(b) by the shirt with his left hand and attempts to punch § 87(2)(b) with his right hand but appears to miss. PO Ogunmoyin appears to try and punch § 87(2)(b) again but it is not seen on camera as they move off-screen.

The next and final portion of the incident is best captured on the second MTA video (BR 03). At 15:56, § 87(2)(b) gets up off of the ground and approaches the officers, with his right hand in a fist, as discussed above. PO Ogunmoyin is seen bringing § 87(2)(b) down to the ground at the bottom of the screen, also discussed above. At 15:58, PO Ogunmoyin attempts to punch § 87(2)(b) but appears to miss, as discussed above. At 16:00, PO Ogunmoyin appears to jump in the air and, as he comes down, punches § 87(2)(b) in the upper left shoulder or head for the sixth time. PO Badlu steps behind § 87(2)(b) and places his hands on § 87(2)(b) lower back. He grabs onto § 87(2)(b) jacket from the back but does not appear to push or pull § 87(2)(b). § 87(2)(b) holds onto the gate near the turnstile with his right hand and covers his face with his left arm.

Between 16:01 to 16:11, PO Ogunmoyin punches § 87(2)(b) and § 87(2)(b) in succession. Immediately following the punch at 16:00, PO Ogunmoyin punches § 87(2)(b) in the face and then punches § 87(2)(b). PO Ogunmoyin then punches § 87(2)(b) twice, switches to punching § 87(2)(b) once, then punches § 87(2)(b) five times. All of PO Ogunmoyin's punches make contact with § 87(2)(b) face and head, and for the entirety of these punches he remains holding onto § 87(2)(b) jacket near the chest with his left hand. § 87(2)(b) holds onto the gate

with his right hand and covers his face with his left hand as PO Ogunmoyin punches him. § 87(2)(b) is not seen on screen so it is unclear where PO Ogunmoyin punched him. At 16:09, § 87(2)(b) is seen at the bottom of the screen and appears to be curled into a ball on the ground around PO Ogunmoyin's right leg. The investigation is not in possession of any video that captures where PO Ogunmoyin hit § 87(2)(b) for this portion of the incident.

In total, video footage captures PO Ogunmoyin punching § 87(2)(b) four times and punching § 87(2)(b) fourteen times.

At 16:09, PO Badlu appears to pull § 87(2)(b) from behind by pulling on the top of § 87(2)(b) jacket. At the same time, § 87(2)(b) extends his left arm with his palm facing out toward PO Ogunmoyin. After the fourteenth punch, § 87(2)(b) lets go of the gate and steps away from PO Ogunmoyin, approximately two steps. PO Badlu remains holding onto his jacket and also steps backward. PO Ogunmoyin, after the fourteenth punch, appears to fall forward, and lands on all fours at 16:12. He does not let go of § 87(2)(b) jacket until 16:15. At 16:16, PO Badlu and § 87(2)(b) move off-screen while PO Ogunmoyin grabs onto § 87(2)(b) who is lying face-down on the ground, by his hood.

In PO Badlu's BWC (BR 04), at 5:23, after PO Ogunmoyin falls to the ground, PO Badlu pulls § 87(2)(b) away by his jacket and tells him to get on the ground. § 87(2)(b) lands on the ground and is on his back. § 87(2)(b) and § 87(2)(b) do not move from the ground and no additional police action occurs until 5:53 when PO Pineda and PO Taveras arrive on scene.

PO Badlu's BWC confirms that for the entirety of this physical interaction, PO Ogunmoyin does not say anything to § 87(2)(b) or § 87(2)(b). PO Badlu gives three commands: At 4:48, he tells § 87(2)(b) to get down; at 5:11, he tells § 87(2)(b) to "get off of him," as he pushes him away from PO Ogunmoyin; and at 5:24, when he tells § 87(2)(b) to get down.

The extent of § 87(2)(b) and § 87(2)(b) injuries from this incident are most clearly seen in PO Taveras' BWC at 3:36 and 7:56, respectively (BR 07).

BWC and MTA footage also confirm that, other than when § 87(2)(b) hit PO Ogunmoyin's MetroCard out of his hand, neither § 87(2)(b) nor § 87(2)(b) are seen on any video footage appearing to hit PO Ogunmoyin.

The TRI report prepared by Captain Thomas Maloney of TD 34 (BR 22), state that § 87(2)(b) and § 87(2)(b) displayed "pre-assault indicators" by clenching and raising their fists. PO Ogunmoyin struck both subjects with closed fists and forcibly took them to the ground due to his "fearing his safety." § 87(2)(b) suffered a broken nose and a laceration/contusion of his left ear that required stitches and § 87(2)(b) suffered a scalp abrasion to the left side of his head and his knee. The report also lists § 87(2)(b) as 5'6" tall and 160 pounds, and § 87(2)(b) as 5'4" tall and 130 pounds.

An AIDED report was prepared for PO Ogunmoyin (BR 23) but none were prepared for § 87(2)(b) or § 87(2)(b). The report, which was prepared by PO Woojin Sin of TD 20, states that PO Ogunmoyin was "assaulted by two perpetrators" and suffered injuries to both hands, left shoulder and arm, chest, and left leg.

Patrol Guide Procedure 221-01 (BR 20) states that, before force is to be used, officers are to use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. Only in situations in which this is not appropriate should an officer use of

force to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. The procedure also outlines the following considerations for when determining if force is reasonable: The nature and severity of the crime/circumstances, Actions taken by the subject, Duration of the action, Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, Whether the subject is actively resisting custody, Whether the subject is attempting to evade arrest by flight, Number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, Subject's violent history, if known, Presence of hostile crowd or agitators, Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

§ 87(2)(g)

§ 87(2)(b) BWC confirms that § 87(2)(b) other than smacking PO Ogunmoyin's MetroCard at the beginning of the interaction, did not strike PO Ogunmoyin at any point.

It is undisputed that PO Ogunmoyin and PO Badlu are physically bigger than § 87(2)(b) and § 87(2)(b) who were both possibly intoxicated at the time of the incident. While BWC also confirms that § 87(2)(b) and § 87(2)(b) ignored orders to first get on the train, and then ignored orders to leave the station, and that § 87(2)(b) smacked PO Ogunmoyin's hand. § 87(2)(g)

Furthermore, BWC and MTA footage confirm that PO Ogunmoyin continued to use hand strikes against both § 87(2)(b) and § 87(2)(b) despite either of them attempting to strike an officer. § 87(2)(g)

it is therefore recommended that **Allegations G and H** be substantiated.

Patrol Guide Procedure 221-01 (BR 20) states that excessive force will not be tolerated and that failure to intervene in the use of excessive force, or report excessive force, or failure to request or to ensure timely medical treatment for an individual is serious misconduct that may result in criminal and civil liability and will result in Department discipline, up to and including dismissal.

§ 87(2)(g)

§ 87(2)(g) it is therefore recommended that **Allegations I and J** be closed as **miscellaneous – subject resigned**.

Allegation (K) Discourtesy: Police Officer John Ogunmoyin spoke discourteously to § 87(2)(b).

Allegation (L) Discourtesy: Police Officer Roger Pineda spoke discourteously to § 87(2)(b).

§ 87(2)(b)

Allegation (M) Force: Police Officer Roger Pineda used physical force against § 87(2)(b)

Allegation (N) Force: Police Officer John Ogunmoyin used physical force against § 87(2)(b)

Allegation (O) Discourtesy: Police Officer John Ogunmoyin spoke discourteously to § 87(2)(b)

These allegations derive solely from BWC footage. In PO Ogunmoyin's BWC (BR 05), at 5:55, PO Pineda and PO Taveras arrive on scene and PO Ogunmoyin tells them to put § 87(2)(b) who is next to PO Badlu, in handcuffs. At 6:00, § 87(2)(b) is seen holding onto PO Ogunmoyin's leg. PO Ogunmoyin says, "Get the fuck off of me."

At 6:30, PO Pineda is seen kneeling on § 87(2)(b) legs, PO Ogunmoyin is holding § 87(2)(b) left arm behind his back, and PO Badlu is holding § 87(2)(b) near his upper back. § 87(2)(b) is lying face down and his right arm is under his face. At 6:38, PO Pineda and PO Ogunmoyin tell § 87(2)(b) to place his other arm behind his back. § 87(2)(b) does not appear to move. At 6:40, PO Pineda punches § 87(2)(b) in the back/right torso area twice and orders § 87(2)(b) to get his arm again. § 87(2)(b) does not move his arm. At the same time as the punches, PO Ogunmoyin appears to try and pull § 87(2)(b) right arm, and instead of § 87(2)(b) arm moving, § 87(2)(b) entire body moves. At 6:45, PO Pineda orders § 87(2)(b) again to, "Give me your arm," grabs § 87(2)(b) right arm, and pulls it behind his back. PO Ogunmoyin assists, but at 6:47 punches § 87(2)(b) in the upper back as § 87(2)(b) says, "I wasn't doing shit." PO Ogunmoyin tells him to, "Shut the fuck up." PO Pineda handcuffs § 87(2)(b) right arm and, after three more orders from PO Ogunmoyin and PO Pineda, puts his left arm behind his back.

In PO Pineda's BWC (BR 06), at 1:05, after PO Ogunmoyin tells PO Pineda and PO Taveras to handcuff § 87(2)(b) PO Pineda turns to § 87(2)(b) who is lying on his back on the ground, not moving, with PO Badlu standing over him. PO Pineda says, "Fuck that," and turns § 87(2)(b) onto his stomach. He says to § 87(2)(b) "Give me your fuck – give me your fucking – don't fucking resist." They successfully handcuff § 87(2)(b) by 1:28.

PO Ogunmoyin (BR 12) testified that he said, "Get the fuck off of me," to § 87(2)(b) in order to get him off his leg. He said that he used the word "fuck" in that statement because § 87(2)(b) was resisting arrest. He provided no additional explanation. PO Ogunmoyin testified that he told § 87(2)(b) to, "Shut the fuck up," to quiet § 87(2)(b) because at that point, they had just fought. He added that he was still trying to get § 87(2)(b) to comply by placing his arms behind his back. He added that he punched § 87(2)(b) when he said this to gain compliance. § 87(2)(b) was not complying at that time by refusing to place his arms behind his back. He provided no additional explanation.

PO Pineda (BRs 16, 17) testified that he said, "Fuck that," not at § 87(2)(b) but just "in general." He had no specific reason as to why he used the word "fuck." As for the statement, "don't fucking resist," he testified that he "just said it." He had no additional reasons as to why he used any profanities. He initially testified that § 87(2)(b) was not resisting "at all," but later amended his statement and said that § 87(2)(b) was moving his body around and "trying to get away" from PO Badlu. He did not know what PO Badlu was doing at the time to overcome § 87(2)(b) resistance. He and PO Taveras assisted PO Badlu in handcuffing § 87(2)(b) PO Pineda then ran over and assisted PO Ogunmoyin and left § 87(2)(b) with PO Taveras.

PO Pineda initially testified that he assisted PO Ogunmoyin in handcuffing § 87(2)(b) who was actively resisting by moving his body around and moving his legs in a manner that suggested to him that § 87(2)(b) was going to run away. § 87(2)(b) was also tensing his arms in front of his body. He and PO Ogunmoyin gave at least four verbal commands to § 87(2)(b) to place his arms behind his back, which § 87(2)(b) ignored. Because § 87(2)(b) was not giving his arm, PO Pineda struck § 87(2)(b) once in the right rib area. Immediately after, § 87(2)(b) made the motion to move his arm behind his back so PO Pineda could handcuff him.

After reviewing his BWC, PO Pineda amended his testimony and stated that the only form of resistance § 87(2)(b) was exhibiting at the time was tensing his arms in front of him. He acknowledged that he did not give any verbal commands to § 87(2)(b) nor did he attempt to pull § 87(2)(b) arms behind his back prior to striking him. He also acknowledged that he struck § 87(2)(b) twice.

Patrol Guide Procedure 200-02 (BR 21) states that officers are committed to treating every citizen with compassion, courtesy, professionalism, and respect. Officers are expected to maintain a higher standard of integrity than is generally expected of others.

In DCT Case Number: 2017-17276 (BR 24) the court held that language which would ordinarily be inappropriate in dealing with civilians may be excused in the course of a violent and stressful confrontation.

Patrol Guide Procedure 221-01 (BR 20) states that, before force is to be used, officers are to use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. Only in situations in which this is not appropriate should an officer use of force to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody.

Patrol Guide Procedure 221-02 (BR 33) defines “active resistance” as “physically evasive movements to defeat a member of the service’s attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody.”

§ 87(2)(g)

It is therefore recommended that **Allegation K** be closed as **within NYPD guidelines**.

However, when PO Ogunmoyin’s told § 87(2)(b) to “Shut the fuck up,” § 87(2)(b) was not yelling or causing some sort of loud disruption to warrant a command to be quiet, nor was PO Ogunmoyin in the same position as when he told § 87(2)(b) to, “Get the fuck off,” as both PO Pineda and PO Badlu were assisting PO Ogunmoyin by this point.

§ 87(2)(g)

It is therefore recommended that **Allegations L and O** be **substantiated**.

BWC confirms that § 87(2)(b) was ignoring verbal commands to put his arms behind his back. BWC also shows PO Ogunmoyin pulling § 87(2)(b) arm and, instead of just the arm moving, § 87(2)(b) entire body moves, indicating that § 87(2)(b) was tensing his arm. § 87(2)(g) BWC also confirms that officers had not yet placed § 87(2)(b) in handcuffs when PO Pineda and PO Ogunmoyin both struck § 87(2)(b) in the back. § 87(2)(g) It is therefore recommended that **Allegations M and N** be closed as **within NYPD guidelines**.

Allegation (P) Discourtesy: Police Officer Tristan Etienne spoke discourteously to § 87(2)(b)

This allegation derives solely from BWC footage. In PO Etienne's BWC (BR 08) at 2:43, PO Etienne and approximately three additional officers are standing over § 87(2)(b) who is handcuffed and lying face down on the ground. Officers hold his arms behind his back and hold his legs. At 2:57, PO Etienne says, "Stop moving, my guy. Stop fucking moving." § 87(2)(b) replies he is not moving. PO Etienne then says, "Alright, we're going to put you on your side, you got it? Cut out the bullshit." Officers then move § 87(2)(b) onto his side.

PO Etienne (BR 18) testified that he assisted officers in restraining § 87(2)(b) on the ground. § 87(2)(b) was refusing to calm down, to sit still, or to remain on his side. PO Etienne testified that officers placed § 87(2)(b) onto his stomach initially because § 87(2)(b) would not calm down, and then moved him to his side once he did. PO Etienne did say, "Stop fucking moving," and, "Cut out the bullshit," in order to gain compliance. PO Etienne did not consider the situation to be stressful at the time that he made that statement. He added that by this point, he had already called over the radio for additional units to stop responding, because there were enough officers on scene and the situation was under control.

Patrol Guide Procedure 200-02 (BR 21) states that officers are committed to treating every citizen with compassion, courtesy, professionalism, and respect. Officers are expected to maintain a higher standard of integrity than is generally expected of others.

In DCT Case Number: 2017-17276 (BR 24) the court held that language which would ordinarily be inappropriate in dealing with civilians may be excused in the course of a violent and stressful confrontation.

PO Etienne testified § 87(2)(g) he told § 87(2)(b) to, "Stop fucking moving," and to, "Cut out the bullshit." BWC also confirms that at least three officers are holding onto § 87(2)(b) when PO Etienne makes these statements. § 87(2)(g) It is therefore recommended that **Allegation P** be **substantiated**.

Allegation (Q) Force: Police Officer Jose Taveras used physical force against § 87(2)(b)

Allegation (R) Force: Police Officer Roger Pineda used physical force against § 87(2)(b)

These allegations derive solely from BWC footage. In PO Pineda's BWC (BR 06), at 8:50, PO Pineda and PO Taveras pick § 87(2)(b) up and walk him out of the train station. They grab onto § 87(2)(b) arms, which are rear-cuffed, and raise them above § 87(2)(b) head, causing § 87(2)(b) to lean forward as they walk him down the stairs. At 9:45, while standing outside waiting for an

ambulance, PO Pineda and PO Taveras appear to lower § 87(2)(b) arms down, allowing § 87(2)(b) to stand up. § 87(2)(b) does not move or say anything. At 9:50, PO Pineda and PO Taveras pull § 87(2)(b) arms up above his head again, causing § 87(2)(b) to bend completely forward. At 9:59, § 87(2)(b) is heard saying, “Sir, sir, sir,” to PO Pineda and PO Taveras. In PO Taveras’ BWC (BR 07), At 10:20, § 87(2)(b) says to PO Taveras, “I’m not going to give you any problem, just tell me where you want me to go.” PO Taveras and PO Pineda then allow § 87(2)(b) to stand back up.

PO Pineda and PO Taveras (BRs 15, 17) both consistently testified that they lifted § 87(2)(b) arms up as they walked him outside to gain compliance, specifically to place § 87(2)(b) at a disadvantage and to prevent § 87(2)(b) from fleeing the scene. Both testified that § 87(2)(b) was not attempting to escape at any point during this incident. Specifically regarding what is seen in PO Pineda’s BWC from 9:45 to 9:54, PO Pineda testified that there was no additional reason as to why he did this in this specific instance, while PO Taveras testified that it was to gain compliance for the same reasons as before. Both testified that § 87(2)(b) was not resisting arrest at any point while officers escorted him out of the station and into the ambulance.

Patrol Guide Procedure 221-01 (BR 20) states that, before force is to be used, officers are to use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. Only in situations in which this is not appropriate should an officer use of force to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody.

BWC is consistent with officer testimony in that § 87(2)(b) was not resisting arrest or trying to escape while PO Taveras and PO Pineda escorted him out of the station and into an ambulance.

§ 87(2)(g)

It is therefore recommended that Allegations Q and R be substantiated.

Allegation (S) Abuse of Authority: Police Officer John Ogunmoyin improperly used his body-worn camera.

Allegation (T) Abuse of Authority: Police Officer Steven Badlu improperly used his body-worn camera.

A comparison of the timestamps between MTA footage (BR 02) and BWC (BRs 04, 05) confirm that PO Ogunmoyin and PO Badlu activated their BWC approximately six minutes after initially engaging with § 87(2)(b) and § 87(2)(b).

PO Ogunmoyin (BR 12) believed that he activated his BWC when he first believed that the two individuals were going to be placed under arrest. He provided no explanation as to why he did not activate his BWC when he first observed the two committing fare evasion.

PO Badlu (BR 13) provided no explanation for the delay in activating his BWC.

Patrol Guide Procedure 212-123 (BR 25) requires officers to activate their BWC prior to engaging in any police action.

§ 87(2)(g)

It is therefore recommended that Allegation S be substantiated.

it is recommended that **Allegation T** be closed as **miscellaneous – subject resigned**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint in which § 87(2)(b) has been a party (**BR 26**).
- This is the first CCRB complaint in which § 87(2)(b) has been a party (**BR 27**).
- PO Ogunmoyin has been a member of service for eighteen years and this is the first CCRB complaint in which he is listed as a subject.
- PO Badlu has been a member of service for 26 years and has been listed as a subject in three CCRB complaints and eight allegations, three of which were substantiated.
 - 20040149 involved a substantiated allegation of refusal to provide name/shield number against PO Badlu. The NYPD imposed instructions.
 - 200500258 involved substantiated allegations of refusal to provide name/shield number and discourtesy against PO Badlu. The NYPD imposed Command Discipline A.
 - § 87(2)(g)
- PO Taveras has been a member of service for five years and this is the first CCRB complaint in which he is listed as a subject.
- PO Pineda has been a member of service for four years and this is the first CCRB complaint in which he is listed as a subject.
- PO Etienne has been a member of service for two years and this is the first CCRB complaint in which he is listed as a subject.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- On April 12, 2023, § 87(2)(b) filed a Notice of Claim with the City of New York, claiming personal injuries, false imprisonment, malicious prosecution, emotional distress, and outrageous conduct and is seeking \$10,000,000 as redress (**BR 28**). There is no 50H hearing scheduled. The investigation identified no Notice of Claim filed for § 87(2)(b)

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 16

Investigator: Carter Garfield
Signature

SI Garfield
Print Title & Name

1/31/2024
Date

Squad Leader:	<u>Patrick Yu</u>	<u>IM Patrick Yu</u>	<u>01/31/2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date